Law enforcement's use of surveillance cameras on public property was originally conceived of as a crime deterrent and an aid to investigators after a crime had occurred. But as the cost of these devices continued to fall, they became ubiquitous, and their role became preemptive—with law enforcement using them to track people who had not committed, or were not even suspected of, any crime. And the greatest danger still lies ahead, with the refinement of artificial intelligence capabilities such as facial and pattern recognition. An AI-equipped surveillance camera would be no mere recording device, but could be made into something closer to an automated police officer—a true robo-cop actively seeking out "suspicious" activity, such as apparent drug deals (that is, people embracing or shaking hands) and apparent gang affiliation (such as people wearing specific colors and brands of clothing). Even in 2011, it was clear to me that this was where technology was leading us, without any substantive public debate.

Potential monitoring abuses piled up in my mind to cumulatively produce a vision of an appalling future. A world in which all people were totally surveilled would logically become a world in which all laws were totally enforced, automatically, by computers. After all, it's difficult to imagine an AI device that's capable of noticing a person breaking the law not holding that person accountable. No policing algorithm would ever be programmed, even if it could be, toward leniency or forgiveness.

I wondered whether this would be the final but grotesque fulfillment of the original American promise that all citizens would be equal before the law: an equality of oppression through total automated law enforcement. I imagined the future SmartFridge stationed in my kitchen, monitoring my conduct and habits, and using my tendency to drink straight from the carton or not wash my hands to evaluate the probability of my being a felon.

Such a world of total automated law enforcement—of, say, all pet-ownership laws, or all zoning laws regulating home businesses—would be intolerable. Extreme justice can turn out to be extreme injustice, not just in terms of the severity of punishment for an infraction, but also in terms of how consistently and thoroughly the law is applied and prosecuted. Nearly every large and long-lived society is full of unwritten laws that everyone is expected to follow, along with vast libraries of written laws that no one is expected to follow, or even know about. According to Maryland Criminal Law Section 10-501, adultery is illegal and punishable by a $10 fine. In North Carolina, statute 14-309.8 makes it illegal for a bingo game to last more than five hours. Both of these laws come